

limitations one year because the limitations period had not yet expired at the time of decedent's death.

“Notwithstanding Section 366.2 of the Code of Civil Procedure, if the limitations period otherwise applicable to the action has not expired at the time of the decedent's death, an action under this chapter may be commenced within one year after the expiration of the limitations period otherwise applicable.” (Prob. Code, § 551.) Section 366.2 provides a similar, but slightly different, provision: “If a person against whom an action may be brought on a liability of the person, whether arising in contract, tort, or otherwise, and whether accrued or not accrued, dies before the expiration of the applicable limitations period, and the cause of action survives, an action may be commenced within one year after the date of death, and the limitations period that would have been applicable does not apply.” (§ 366.2.)²

The Court agrees that Probate Code section 551 applies and extends the statute of limitations. Here, the only allegation relating to Jack Malan's date of death is in Paragraph 7. Taken as true, Paragraph 7 establishes that Jack Malan passed away, at the latest, on October 20, 2025. It follows that section 335.1's two-year limitations period (under which Plaintiff had until October 20, 2025 to file an action) had not expired at the time of the decedent's death. Thus, under Probate Code 551, the action “may be commenced within one year after the expiration of the limitations period otherwise applicable,” or October 21, 2026. Based on the foregoing, the complaint, filed on October 21, 2025, is timely.

Defendants' attempt in Reply to refute Probate Code section 551's applicability is unavailing.

Based on the foregoing, the demurrer is OVERRULED. This ruling renders it unnecessary for the Court to consider Defendant's additional arguments in opposition to the demurrer. (See Opp. 7:12-10:7.)

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American Canyon I. LLC v. City of American Canyon et al

26CV001286

DEFENDANT CITY OF AMERICAN CANYON'S DEMURRER TO COMPLAINT OF
PLAINTIFF AMERICAN CANYON 1, LLC

TENTATIVE RULING: The demurrer is CONTINUED to September 11, 2026, at 1:30 p.m. in Dept. A. If that date and time do not work for the parties, they shall request oral argument pursuant to Local Rule 2.9 and appear at the hearing.

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² Plaintiff contends that section 366.2 does not apply because the present action is brought on an insured claim for which Probate Code 551 applies. (Opp., 6:3-5.) Defendants implicitly concede this by failing to address it in Reply.

In The Matter of Satoshi J Sakamoto

26CV001348

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Estate of Rodney Tyrone Smith

25PR000029

STATUS HEARING RE: FINAL DISTRIBUTION

APPEARANCE REQUIRED. There remains no petition for final distribution or status report on file. Executor is therefore required to appear prepared to discuss the condition of the estate, the reasons why the estate cannot be distributed and closed, and an estimate of time needed to close administration of the estate.

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Conservatorship of Sofia Vanessa Munoz Castro

26PR000151

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON – LIMITED CONSERVATORSHIP

TENTATIVE RULING: The matter is CONTINUED to October 07, 2026, at 8:30 a.m. in Dept. B to permit Petitioner to address the following deficiencies:

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

**Red Target, LLC d/b SCJ Commercial Financials
Services v. Kiersten Firquain**

23CV000301

PLAINTIFF’S MOTION TO SET ASIDE JULY 21, 2026, HEARING PURSUANT TO CODE OF CIVIL PROCEDURE 473(b)

TENTATIVE RULING: The Motion, construed as one seeking to set aside prior orders, is GRANTED. The Court orders the Clerk to STRIKE the Court’s Minute Order of July 21, 2026, granting Defendant’ Kiersten Firquain’s Motion to Strike Plaintiff’s First Amended Complaint (Motion to Strike), and the Order After Hearing filed August 7, 2026. Plaintiff is granted leave to serve and file, no later than September 16, 2026, any opposition to the Motion to Strike. Ms. Firquain is granted leave to serve and file, no later than September 23, 2026, any